

Transcriptions of Suffrage Legislation



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The Constitution of the United States of America

The Fifteenth Amendment--Rights of Citizens to Vote

Section 1. The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of race, color, or previous condition of servitude.

Section 2. The Congress shall have power to enforce this article by appropriate legislation.

In 1867, during the second session of the 39th Congress, the seceded States had to guarantee African-American suffrage as a condition of readmission. The Fifteenth Amendment was not nationally ratified until 1870.

1894 Walton Act

Political corruption in Virginia had become so general that it was a source of embarrassment. With the intent of cleaning up elections, the Walton Act, a disfranchising law based on literacy, was passed. The Walton Act used ballots that contained no symbols or party designations and required a degree of literacy to mark properly. The voter was required to draw a line through the names of the candidates for which he did not wish to vote and leave the name or names of the candidate candidates he did wish to vote for unscratched. A name was considered unscratched if the line did not extend through three-fourths of its length. If more than the appropriate number of names remained unscratched, then the ballot was considered void.

Over half of Virginia's African-American population and a considerable portion of the whites were illiterate. Numerous illiterate voters avoided the polls to prevent embarrassment and to prevent marking the wrong candidate. Voting was performed secretly in a booth, but a voter could ask assistance from a specially appointed constable. Nothing, however, could prevent the constable from improperly informing the illiterate voter.

The Walton Act accounted for the Republican party's decline in strength and the decline in overall voter turnout from 1893 to 1897. Morgan J. Kousser suggests that "[T]he estimated percentage of Negroes who cast their ballots for the opposition fell from 46 percent in 1893 to 2 percent in 1897...The Walton Law ended most actual voting."

Acts of Assembly

CHAP. 746.--An ACT to provide for the method of voting by ballot.

Approved March 6, 1894

1. Be it enacted by the general assembly of Virginia, that every elector shall vote by ballot.
2. Each person offering to vote shall deliver a single ballot to one of the judges of election in the presence of at least one of two judges.
3. The ballot shall be a white paper ticket, containing the names the persons who have complied with the provisions of this act as hereinafter provided, and the title of the office printed or written as hereinafter provided. None other shall be a legal ballot.
4. Any person who intends to be a candidate for an office, state or national, to be elected by the electors of the state at large, or of a congressional district, shall, at least twenty days before such election, notify the secretary of the commonwealth in writing, properly attested, of such intention, designating the office for which he be a candidate. Such written notice shall be signed by the said candidate, but if he be incapable of writing his proper signature, then some mark adopted by him as his signature shall be acknowledged before a justice of the peace or other officer authorized to take acknowledgments to deeds, and in the same manner. Any person who intends to be a candidate for any office not embraced in the foregoing at any election shall give a similar notice at least twenty days before such election to or clerks of the county or hustings courts of the various county or counties or the city or cities whose electors vote for the candidate for such office. No person not announcing his candidacy as provided for above shall have his name printed on the ballots provided for such election. On receipt of the foregoing notice it shall be the duty of the secretary of the commonwealth to immediately notify the secretary of each electoral board of each county or city or state or of said congressional district.
5. It shall be the duty of the electoral boards of the several counties and cities within the state, within thirty days preceding each election, to cause to be printed a number of ballots equal to twice the entire registered vote of the said county or city. These ballots shall contain the names of all candidates complying with the provisions as above required, printed in black ink immediately below the office for which they have so announced their candidacy.
6. The printer with whom the board shall contract for the printing of the said ballots shall, before the work is commenced, take an oath before the secretary of said board, who is hereby empowered to administer said oath, to the following effect:

"I, -----, solemnly swear that I will print (here insert number) ballots, according to the instruction of the electoral board of the county (or city) of ----- that I will print and will permit to be printed directly or indirectly, no more than the above number; that I will at once destroy all imperfect and perfect impressions ; that as soon as said number of ballots is printed I will distribute the type used for said work; and finally, that I will not communicate to any one whomsoever, in any manner whatsoever, the size, style or contents of said ballots."

This oath shall be reduced to writing, and signed by the person taking it, and also a similar affidavit shall be required of any employee or other person engaged upon said work, or who shall have access to it, and any intentional violation of said oath shall constitute the crime of perjury. It shall be the duty of said board to designate one of their number to be continuously present in the room in which said ballots are printed from the commencement until the end of said work, and see that the undertakings of said oath are strictly complied with. For the faithful discharge of said duty he shall receive as compensation two dollars. As soon as said ballots are printed, they shall be securely wrapped and sealed, and such member of the electoral board shall take them into his exclusive possession, allowing no one to examine them; nor shall such member communicate to any one any information as to the size, style or contents of said ballots. He shall continue in such exclusive possession until he delivers said ballots to the electoral board as hereinafter provided. Any violation of the provisions of this section for which no punishment has been otherwise provided shall be deemed a misdemeanor, and punished by a fine of two hundred dollars and imprisonment for one month in jail.
7. It shall be the duty of the electoral board, as soon as possible after the passage of this act, to procure and adopt a seal, which may be changed from time to time in the discretion of said board, which said seal shall be not less

than two inches in diameter. Said board shall meet as soon as convenient after the printing of the ballots, as provided in the preceding section, of which meeting the judge of the county or corporation court shall be notified, and at which there shall be present the said judge and the members of the said board, but no other persons. And said judge shall thereupon enter of record upon the minutes of the electoral board an affidavit stating that said ballots were counted and sealed in his presence in the manner prescribed by law. At this meeting the member of the board who shall have secured from the printer the ballots, as required by the preceding section, shall deliver said ballots to said board. The ballots shall then be carefully counted by the said board, and entered by the secretary of the board in a book provided by him and kept for such purpose. The board shall affix its seal to every ballot printed as above provided, on the side reverse from that upon which the names of the candidates appear. Of the said ballots they shall make as many packages as there are voting precincts in said county or city, one for each precinct, which package shall contain twice as many official ballots as there are voters registered at that for which it is intended. Each of these packages shall be securely sealed so that the ballots shall be invisible, and so that they could not be readily opened without detection. Upon each of said packages shall be endorsed the name of the precinct for which it is intended and the number of ballots therein contained. The remainder of the ballots shall then be securely wrapped and sealed and kept securely by the said board. The said packages designed for the various precincts shall remain in the exclusive possession of the secretary of the board until delivered by him to the judges or judge of election of the precinct as hereinafter provided.

8. Before every election the secretary of the electoral board shall deliver to the judges or judge of election the package of official ballots for that precinct, taking a receipt therefor and a certificate that the seals appeared to be untampered with. Said sealed package, at the opening of the polls, shall be opened in the presence of the clerks of election and other judges present, and the ballots in said package shall then be carefully counted. All ballots remaining unused at the close of the polls shall be carefully destroyed before the box is opened. Any person willfully and corruptly failing to perform the duties required of him, or intentionally violating any of the provisions of this section, or opening any sealed package of official ballots, except as specially provided for herein, shall be deemed guilty of a misdemeanor and be punished with a fine of two hundred dollars and imprisoned one month in jail.

9. It shall be the duty of the electoral board of the several counties and cities to provide at each of the voting places in their respective counties and cities a small compartment or booth, large enough to contain and conceal from general observation a voter and a desk or other convenience for writing. In said booth there shall be placed pen and ink. Said compartment or booth shall be so erected that person standing at said desk in said booth or compartment shall be wholly excluded from the observation of the clerks, judges of election and other persons. The said board, in its discretion, may have one or more of said booths at said voting places.

10. Except as hereinafter provided for, save the judges of election and clerks allowed by law, no person other than the elector offering to vote shall be within forty feet of the ballot-box. The judges of election shall promptly decide any dispute as to the precedence of electors to the right to vote, deciding who first offered; or, if two or more offered at the same time, selecting the one to whom precedence shall be given; but in case of a challenge, the challengers and challenged and the witnesses may appear before the judges; when such challenge is decided only the elector having the right to vote shall remain within the prescribed limits.

11. Every elector qualified to vote at a precinct shall, when he so demands, be furnished with an official ballot by one of the judges of election selected for that duty by a majority of the judges present. The said elector shall then take the said official ballot and retire to said voting booth. He shall then draw a line with a pen or pencil through the names of the candidates he does not wish to vote for, leaving the name or names of the candidate or candidates he does wish to vote for unscratched. No name shall be considered scratched unless the pen or pencil mark extend through three-fourths of the length of said name, and no ballot save an official ballot above provided for shall be counted for any person. When, as to any office more than one name remains unscratched the ballot for that particular office shall be void, but the ballot, as to any other office for which only one name remains unscratched, shall be valid. He shall fold said ballot with the names of the candidates on the inside and hand the same to the judge of election, who shall place the same in the ballot-box without any inspection further than to assure himself that said ballot is a genuine ballot, for which purpose he may, without looking at the printed inside of said ballot, inspect the official seal upon the back thereof: provided it shall be lawful for any

voter to erase any or all names printed upon said official ballot and substitute therein in writing the name of any person or persons for any office for which he may desire to vote.

12. It shall be unlawful for any elector to carry the official ballot furnished him by the judge of election further than the voting booth, and should he, after inspecting said ballot, conclude not to vote, he must immediately return said ballot to the judges of election. Except as hereinafter provided, no person shall advise, counsel or assist any elector by writing, word or gesture, as to how, he shall vote or mark his ballot after the same has been delivered to him by the judges of election. Any person violating the provisions of this section shall be deemed guilty of a misdemeanor, and, upon conviction, thereof, shall be fined not less than five hundred nor more than one thousand dollars and confined in jail six months. To carry any official ballot beyond the voting booth or away from said booth, except to the judges of election or to vote any ballot except such as shall be received by the elector from the judge of election, shall be a misdemeanor punishable by a fine of one hundred dollars; and it shall be the duty of the judges of election to cause by verbal order or warrant the instant arrest of any person making such attempt, and he shall be required to vote or surrender said ballot, and he may be confined in jail, by the order of said judges of election, until he obeys said requirement, not exceeding ten days.

13. No elector shall be allowed by the judges of election to remain in said voting booth provided in this act more than two and one-half minutes to the obstruction of other electors desiring to vote. Said judges of election shall cause any elector attempting to occupy said voting booth for a longer time to require and surrender his ballot and he shall not again be allowed to receive an official ballot, unless the discretion of the judges of election another opportunity to vote will not delay or hinder other electors.

14. Should any ballot be unintentionally or accidentally defaced, or in any way rendered unfit for voting by such elector, the elector shall deliver said defaced ballot to the judges of election and receive another upon taking an oath that the defacement of the ballot first delivered to him was not done for the purpose of defacing said official ballot. Any person swearing falsely to such fact shall be deemed guilty of perjury.

15. The electoral board of each county or city shall appoint for each voting precinct therein one special constable, who shall be an honest and discreet person of said precinct and be able to read and write, and who shall be a conservator of the peace, and shall be especially charged with enforcing the provisions of this act, having all the powers of a constable; and for such services he shall be allowed one dollar per day. He shall have the power of arresting upon the verbal order or warrant of the judges of election, or a majority of them, of the precinct to which he is appointed, any person who is offending or attempting to violate any of the provisions of this act or disturbing the peace, and the person so arrested shall be taken as soon as possible before a justice of the peace having cognizance of the offence, and be then proceeded against under the general laws of the state. At the request of any elector in the voting booth who may be physically or educationally unable to vote, the said special constable may render him assistance by reading the names and offices on the ballot and pointing out to him the name or names he may wish to strike out, or otherwise aid him in preparing his ballot. In case said elector be blind, said special constable shall prepare said ballot for said elector in accordance with the instructions of said elector. Before entering upon the duties of his office the said special constable shall take an oath to faithfully perform the duties thereof, and for a corrupt violation of the same he shall be deemed guilty of a misdemeanor and be fined not less than five hundred dollars and be imprisoned not less than one nor more than twelve months in jail.

16. It shall not be lawful upon the day of election for persons to congregate and crowd upon the public highways within one hundred feet of any of the voting places, and any person violating the provisions of this section shall, upon conviction thereof, pay a fine of twenty-five dollars or be confined in jail not exceeding ten days. Any member of the electoral board, the printer who shall print the official ballots provided for by this act, any judge of election, or any other person who shall give or sell to any, person whomsoever, except where it is distinctly provided by this act, any official ballot or any copy, or any fac-simile of the same, or any information about the same, or shall counterfeit or attempt counterfeit the same, shall be deemed guilty of a misdemeanor, and, upon conviction thereof, shall be fined five hundred dollars and imprisoned in jail six months. It shall be the duty of the judges of election to see that the provisions of this act are strictly carried out.

17. The said special constable may be removed by said electoral board or by said judges of election at their pleasure, and a successor for him may be appointed immediately. And when any such constable fails to attend punctually at the opening of the polls at any precinct, the judges of election at such precinct, or a majority of them may select some qualified voter from those present, who, after taking an oath to be administered by one of the said judges to faithfully perform the duties of said office, shall have same powers to act and be under like penalties as said special constable appointed by said electoral board.

The secretary of said electoral board shall keep in his sole custody the seal or stamp of said board, and in a sealed package, to be opened only in the presence of the electoral board and the judge of the county or corporation court when in the discharge of their duty as prescribed in section seven aforesaid.

18. The cost of conducting an election under this act shall be paid by the supervisors out of the general county levy, and in cities by the council thereof.

19. All sets and parts of acts in conflict with this act or any section thereof are hereby repealed.

1902 Constitution of Virginia

Article II of the 1902 Virginia Constituion was designed to maintain white suffrage while eliminating Afircan-American voters by menas of literacy tests, and property and poll tax requirements.

- [Sections 18-26](#) explain the voter qualifications.
- [Sections 27-29](#) describe election procedures.
- [Section 30](#) details the General Assembly's powers regarding the property qualification.
- [Section 31](#) states the size and duties of the Electoral Board.
- [Sections 32-37](#) explain the qualifications and responsibilities of office holders.
- [Section 38](#) describes the manner in which lists of registered voters who have paid their poll taxes should be recorded and maintained.

Article II. Elective Franchise and Qualifications for Office.

Sec. 18. Every male citizen of the United States, twenty-one years of age, who has been a resident of the State two years, of the county, city, or town one year, and of the precinct in which he offers to vote, thirty days, next preceding the election in which he offers to vote, has been registered, and has paid his state poll taxes, as hereinafter required, shall be entitled to vote for members of the General Assembly and all officers elective by the people, but removal from one precinct to another, in the same county, city or town shall not deprive any person of his right to vote in the precinct from which he has moved, until the expiration of thirty days after such removal.

Sec. 19. There shall be general registrations in the counties, cities and towns of the State during the years nineteen hundred and two and nine teen hundred and three at such times and in such manner as may be prescribed by an ordinance of this Convention. At such registrations every male citizen of the United States having the qualifications of age and residence required in section Eighteen, shall be entitled to register, if he be: First. A person who, prior to the adoption of this Constitution, served in time of war in the army or navy of the United States, of the Confederate States, or of any state of the United States or of the Confederate States; or, Second. A son, of any such person; or, Third. A person, who owns property, upon which, for the year next preceding that in which he offers to register, state taxes aggregating at least one dollar have been paid; or, Fourth. A person able to read any section of this Constitution submitted to him by the officers of registration and to give a reasonable explanation of the same; or, if unable to read such section, able to understand and give a reasonable explanation thereof when read to him by the officers.

A roll containing the names of all persons thus registered, sworn to and certified by the officers of registration shall be filed, for record and preservation, in the clerk's office of the circuit court of the county, or the clerk's office of the corporation court of the city, as the case may be. Persons thus enrolled, shall not be required to

register again, unless they shall have ceased to be residents of the State, or become disqualified by section Twenty-three. Any person denied registration under this section shall have the right of appeal to the circuit court of his county, or the corporation court of his city, or to the judge thereof in vacation.

Sec. 20. After the first day of January, nineteen hundred and four, every male citizen of the United States, having the qualifications of age and residence required in section Eighteen, shall be entitled to register, provided:

First. That he has personally paid to the proper officer all state poll taxes assessed or assessable against him, under this or the former Constitution, for the three years next preceding that in which he offers to register; or, if he come of age at such time that no poll tax shall have been assessable against him for the year preceding the year in, which he offers to register, has paid one dollar and fifty cents, in satisfaction of the first year's poll tax assessable against him; and,

Second. That, unless physically unable, he make application to register in his own hand-writing, without aid, suggestion, or memorandum, in the presence of the registration officers, stating therein his name, age, date and place of birth, residence and occupation at the time and for the two years next preceding, and whether he has previously voted, and, if so, the state, county and precinct in, which he voted, last; and,

Third. That he answer on oath any and all questions affecting his qualifications as an elector, submitted to him by the officers of registration, which questions, and his answers thereto, shall be reduced to writing, certified by the said officers, and preserved as a part of their official records.

Sec. 21. Any person registered under either of the last two sections, shall have the right to vote for members of the General Assembly and all officers elective by the people, subject to the following conditions:

That he, unless exempted, by section Twenty-two, shall, as a prerequisite to the right to vote after the first day of January, nineteen hundred and four, personally pay, at least six months prior to the election, all state poll taxes assessed or assessable against him, under this Constitution, during the three years next preceding that in which he offers to vote; provided that, if he register after the first day of January, nineteen hundred and four, he shall, unless physically unable, prepare and deposit his ballot without aid, on such printed form as the law may prescribe; but any voter registered prior to that date may be aided in the preparation of his ballot by such officer of election as he himself may designate.

Sec. 22. No person who, during the late war between the States, served in the army or navy of the United States, or the Confederate States, or any state of the United States, or of the Confederate States, shall at any time be required to pay a poll tax as a prerequisite to the right to register or vote. The collection of the state poll tax assessed against any one shall not be enforced by legal process until the same has become three years past due.

Sec. 23. The following persons shall be excluded, from registering and voting: Idiots, insane persons, and paupers; persons who, prior to the adoption of this Constitution, were disqualified from voting, by conviction of crime, either within or without this State, and whose disabilities shall not have been removed; persons convicted after the adoption of this Constitution, either within or without this State, of treason, or of any felony, bribery, petit larceny, obtaining money or property under false pretences, embezzlement, forgery, or perjury; persons who, while citizens of this State, after the adoption of this Constitution, have fought a duel with a deadly weapon, or sent or accepted a challenge to fight such duel, either within or without this State, or knowingly conveyed a challenge, or aided or assisted in any way in the fighting of such duel.

Sec. 24. No officer, soldier, seaman, or marine of the United States army or navy shall be deemed to have gained a residence as to the right of suffrage, in the State, or in any county, city or town thereof, by reason of being stationed therein; nor shall an inmate of any charitable institution or a student in any institution of learning, be regarded as having either gained or lost a residence, as to the right of suffrage, by reason of location or sojourn in such institution.

Sec. 25. The General Assembly shall provide for the annual registration voters under section Twenty, for an appeal by any person denied registration for the correction of illegal or fraudulent registration, there and also for the proper transfer of all voters registered under this Constitution

Sec. 26. Any person who, in respect to age or residence, would be qualified vote at the next election, shall be admitted to registration, notwithstanding that at the time thereof he is not so qualified, and shall be entitled to vote at

said election if then qualified under the provisions of this Constitution.

Sec. 27. All elections by the people shall be by ballot; all elections by any representative body shall be viva voce, and the vote recorded in the journal thereof.

The ballot-box shall be kept in public view during all elections, and will not be opened, nor the ballots canvassed or counted, in secret.

So far as consistent with the provisions of this Constitution, the absolute secrecy of the ballot shall be maintained.

Sec. 28 The General Assembly shall provide for ballots without any distinguishing mark or symbol, for use in all state, county, city, and other elections by the people, and the form thereof shall be the same in places where any such election is held. All ballots shall contain the names of the candidates, and of the offices to be filled, in clear print and in due and orderly succession; but any voter may erase any name and add another.

Sec. 29. No voter, during the time of holding any election at which he titled to vote, shall be compelled to perform military service, except time of war or public danger; to attend any court as suitor, juror, or witness and no voter shall be subject to arrest under any civil process during his attendance at election or in going to or returning therefrom.

Sec. 30. The General Assembly may prescribe a property qualification not exceeding two hundred, and fifty dollars for voters in any county or subdivision thereof, or city or town, as a for voting in any election for officers, other than the members of the General Assembly, to wholly elected by the voters of such county or subdivision thereof, or city or town; such action, if taken, to be had upon the initiative, of a representative in the General Assembly of the county, city or town affected: provided, that the General Assembly in its discretion may make such exemptions from the operation of said property qualification as shall not be in, conflict with the Constitution of the United States.

Sec. 31. There shall be in each county and city an electoral board composed of three members, appointed by the circuit court of the county or corporation court of the city, or the judge of the court in vacation. Of those first appointed, one shall be appointed for a term of one year, one for a term of two years, and one for a term of three years; and, there after their successors shall be appointed for the full term of three years. Any vacancy occurring in any board, shall be filled by the same authority for the unexpired term.

Each electoral board shall appoint the judges, clerks, and registrars of election for its county or city; and, in appointing judges of election, representation as far as possible shall be given to each of the two political, parties which, at the general election next preceding their appointment cast the highest and next highest number of votes.

No person, nor the deputy of any person, holding any office or post of profit or emolument, under the United States Government, or who is in the employment of such government, or holding any elective office of profit or trust in the State, or in any county, city, or town thereof, shall be appointed a member of the electoral board, or registrar, or judge of election.

Sec. 32. Every person qualified to vote shall be eligible to any office of the State, or of any county, city, town, or other subdivision of the State wherein he resides, except as otherwise provided in this Constitution, and except that this provision as to residence shall not apply to any office elective by the people where the law provides otherwise. Men and women eighteen years of age shall be eligible to the office of notary public, an qualified to execute the bonds required of them in that capacity.

Sec. 33. The terms of all officers elected, under this Constitution shall begin on the first day of February next succeeding their election, unless otherwise provided in this Constitution. All officers, elected or appointed shall continue to discharge the duties of their offices after their terms of service have expired, until their successors have qualified.

Sec. 34. Members of the General Assembly and all officers, executive and judicial, elected or appointed after this Constitution goes into effect, shall, before they enter on the performance of their public duties, severally take and subscribe the following oath or affirmation:

"I do solemnly swear (or affirm) that I will support the Constitution of the United States, and the Constitution of the State of Virginia ordained by the Convention which assembled in the city of Richmond on the twelfth day of June, nineteen hundred and one, and that I will faithfully and impartially discharge and perform all the duties incumbent on me as according to the best of my ability; so help me God."

Sec. 35. No person shall vote at any legalized primary election for the nomination of any candidate for office unless he, is at the time registered and qualified to vote at the next succeeding election.

Sec. 36. The General Assembly shall enact such laws as are necessary and proper for the purpose of securing the regularity and purity of general, local and primary elections, and, preventing and, punishing any corrupt practices in connection therewith; and shall have power, in addition to other penalties and punishments now or hereafter prescribed by law for such offences, to provide that persons convicted, of them shall thereafter be disqualified from voting or holding office.

Sec. 37. The General Assembly may provide for the use, throughout the State or in any one or more counties, cities, or towns in any election, of machines for receiving, recording, and counting the votes cast thereat: provided, that the secrecy of the voting be not thereby impaired.

Sec. 38. After the first day of January, nineteen hundred and four, the treasurer of each county and city shall, at least five months before each regular election, file with the clerk of the circuit court of his county, or of the corporation court of his city, a list of all persons in his county or city, who have paid not later than six months prior to such election, the state poll taxes required by this Constitution during the three years next preceding that in which such election is held; which list shall be arranged alphabetically, by magisterial districts or wards, shall state the white and colored persons separately, and, shall be verified by the oath of the treasurer. The clerk, within ten days from the receipt of the list, shall make and certify a sufficient number of copies thereof, and shall deliver one copy for each voting place in his county or city, to the sheriff of the county or sergeant of the city, whose duty it shall be to post one copy, without delay, at each of the voting-place, and, within ten days from the receipt thereof, to make return on oath to the clerk, as to the places where and dates at which said copies were respectively posted; which return the clerk shall record in a book kept in his office for the purpose; and he shall keep in his office for public inspection, for at least sixty days after receiving the list, not less than ten certified copies thereof, and also cause the list to be published in such other manner as may be prescribed by law; the original list returned by the treasurer shall be filed and preserved by the clerk among the public records of his office for at least five years after receiving the same. Within thirty days after the list has been so posted, any person who shall have paid his capitation tax, but whose name is omitted from the certified list, may, after five days' written notice to the treasurer, apply to the circuit court of his county, or corporation court of his city, or to the judge thereof in vacation, to have the same corrected and his name entered thereon, which application the court or judge shall promptly hear and decide.

The clerk shall deliver, or cause to be delivered, with the poll-books, at a reasonable time before every election, to one of the judges of election of each precinct of his county or city, a like certified copy of the list, which shall be conclusive evidence of the facts therein stated for the purpose of voting. The clerk shall also, within sixty days after the filing of the list by the treasurer, forward a certified copy thereof, with such corrections as may have been made by order of the court or judge, to the Auditor of Public Accounts, who shall charge the amount of the poll taxes stated therein to such treasurer unless previously accounted for.

Further evidence of the prepayment of the capitation taxes required by this Constitution, as a prerequisite to the right to register and vote, may be prescribed by law.